

FIRST AMENDMENT TO LEASE AGREEMENT

BY AND BETWEEN

CITY OF BRECKSVILLE, LESSOR

AND

BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT

FOR A CERTAIN BUILDINGS AND APPURTENANT
AREAS LOCATED AT:

BLOSSOM PROPERTIES
4448 OAKES ROAD
BRECKSVILLE, OHIO 44141

THIS FIRST AMENDMENT TO THE LEASE AGREEMENT is made this 31st day of October, 2019 between the CITY OF BRECKSVILLE, an Ohio Municipal Corporation (herein called the "City" or "Lessor"), as Lessor, and BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT, as Lessee. The Lessor and Lessee amend the Lease for Building 6 as follows:

SECTION 1

TERM

Replace Paragraph 1 with the following: Unless terminated soon as provided herein, the term of this Lease Agreement shall be for a period of Thirty-six (38) months commencing July 1, 2019 and ending June 30, 2022.

SECTION 2

BASE RENT

Replace the first Paragraph of Section 2 with the following: The Lessee shall pay to the City as base rent the annual sum of **Twenty-One Thousand Three Hundred Sixty Dollars (\$21,360.00)** payable in quarterly installments (July 1st, October 1st, January 1st, April 1st) of Five Thousand Three Hundred Forty Dollars **(\$5,340.00)** for the first two years. The aforesaid annual sum is derived from the 7,120 square feet multiplied by Three Dollars (\$3.00). Rent shall be abated and not charged for the period July 1, 2021 through June 30, 2022.

SECTION 3

COMMON AREA AND MAINTENANCE CHARGE

3. **ADD THE FOLLOWING TO SECTION 3A:** THE THIRD YEAR OF THE TERM THE CAM CHARGE WILL BE ZERO.

SECTION 4

REMODELING AND MAINTENANCE OF PREMISES

In Paragraphs 5 and 6 replace Lessee with Lessor such that Lessor shall be responsible for repair, maintenance and replacement of the identified building systems.

IN WITNESS WHEREOF, the City has caused this Amendment to be executed by its Mayor and the Lessee has caused this Lease to be executed by the Superintendent of Schools and Treasurer of the Lessee, as of the date first above written, pursuant to authority duly granted by the Council of the City of Brecksville and the appropriate governing authority of the Lessee.

THE CITY OF BRECKSVILLE, Lessor

Jerry N. Hruby, Mayor
City of Brecksville

APPROVED AS TO FORM ONLY:

David J. Matty, Director of Law
City of Brecksville

THE BRECKSVILLE-BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT, Lessee

Authorized Officer

Title

Authorized Officer

Title

CITY OF BRECKSVILLE

STATE OF OHIO)
) SS:
COUNTY OF CUYAHOGA)

NOTARY PUBLIC

On this ____ day of _____, 2019, before my, a Notary Public in and for said County and State, personally appeared Jerry N. Hruby, the Mayor of the City of Brecksville, Ohio, to me personally known, and acknowledge the execution of this forgoing instrument, and that the same is his voluntary act and deed on behalf of said City of Brecksville, Ohio, and the voluntary and corporate act and deed of said City of Brecksville, Ohio.

IN WITNESS WHEREOF, I have hereunder subscribed my name and affixed my official seal on the date and year aforesaid.

Notary Public

BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT

STATE OF OHIO)
) SS:
COUNTY OF CUYAHOGA)

NOTARY PUBLIC

On this ____ day of _____, 2019, before my, a Notary Public in and for said County and State, personally appeared _____ and _____, the _____ and the _____, to me personally known, and acknowledge the execution of this forgoing instrument, and that the same is his voluntary act and deed on behalf of said BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT, and the voluntary and corporate act and deed of said BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT.

IN WITNESS WHEREOF, I have hereunder subscribed my name and affixed my official seal on the date and year aforesaid.

Notary Public